

June 11, 2025
Washington County Deputy District Attorney
120 North 1st Ave, Ste 300
Hillsboro OR 97124
http://north.wa.org.us/washington

June 11, 2025
Jake Robert Brugger
Metro Public Defender Inc
400 E Main St Ste 200
Hillsboro OR 97123
http://courts.oregon.gov/washington

Re: State of Oregon vs. Barry Trennell Washington
Case #: 25CN02140 Procedural Matters - Contempt of Court Punitive

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Note: Documents may not be attached to events depending on local court business processes.

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IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

STATE OF OREGON,)
) No. 25CN02140
)
 Plaintiff,)
) ORDER RE: MOTION TO
) WITHDRAW
 vs.)
 BARRY WASHINGTON,)
)
 Defendant.)

THIS MATTER having come before the Court upon the motion of Jake Brugger to withdraw as the attorney for the defendant;

IT IS HEREBY ORDERED that the motion to withdraw is:

☐ Granted ☒ Denied

6/10/2025 2:18:21 PM
Circuit Court Judge, Kelly D. Lamer

Submitted By: Jake Brugger, OSB # 244423
Attorney for Defendant

PAGE 1--MOTION TO WITHDRAW

METROPOLITAN PUBLIC DEFENDER
400 EAST MAIN STREET, SUITE 200 HILLSBORO, OREGON 97123 PHONE: (503) 754-7000 FAX: (503) 754-7000

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1 suppression. *State v. Peralda*, 315 Or App 252, 261 (2021) (citing *Noble*, 314 Or at 632); See
2 also *State v. Beckstead*, 164 Or App 538, 541 (1999).
3
4 **I. The arrest warrant issued by WCCC cannot justify the search and arrest because it**
5 **was not supported by a sworn oath or affirmation and because the State will be**
6 **unable to produce the warrant itself.**
7
8 Article I, § 9 provides that "no warrant shall issue but upon probable cause, supported by
9 oath, or affirmation, and particularly describing the place to be searched, and the person or thing
10 to be seized." Except for limited exceptions, all warrants must be supported by oath or
11 affirmation. *Noble*, 314 Or at 632; *State v. Beckstead*, 164 Or App 538, 541 (1999); Article I, § 9
12 applies to arrest warrants as well as to search warrants. *State v. Brown*, 96 Or App 171, 175
13 (1989) (citing *State v. Flynn*, 137 Or. 8, (1931)).
14
15 In *Peralda*, a detective investigated the defendant for dealing methamphetamine.
16 *Peralda*, 315 Or App at 254. The detective searched for the defendant in a "law enforcement
17 database," discovering that the defendant had a felony parole violation warrant for his arrest. *M.*
18 The detective did not view the physical warrant with a judge's signature or arrest warrant
19 but only saw the computer entry that flagged the warrant. *M.* The detective then arrested the
20 defendant on the parole violation warrant after the defendant left his apartment. *M.* The detective
21 questioned the defendant, searched him, and found incriminating evidence. *M.*
22 The Defendant moved to suppress, alleging that the arrest warrant was not supported by a
23 sworn statement of probable cause. *M.* at 263. The State never produced an arrest warrant during
24 its prosecution of the defendant. *M.* The Court of Appeals held that, because the State neither
25 produced the parole violation warrant nor demonstrated that the search was supported by
26 probable cause and a warrant exception, the trial court should have suppressed the evidence

PAGE 16--MOTION TO SUPPRESS SEARCH AND ARREST

METROPOLITAN PUBLIC DEFENDER
JULIE SAWYER, CLU, BAR, JUDICIAL OFFICER

Corrections Information Systems
Offender Warrant Request Report
Offender: 14798711 WASHINGTON, BARRY TRENNEL Location: WASH
DOB: 04/06/1984
Current Status: PostPrison/LC
Requester ID/Name: BIRNBAUM
Address: 17548 NW SPRINGVILLE RD #9
City: PORTLAND State: OR
Comm Risk: 600 HI High
Primary CaseLoad: 5249 MCBRIDE, MOLLY
Rtnry Date: 11/25/2024
Docket #: County: Offr Oth Para Descript Max Date
21CR25804/03 WASH 1 166220 WEAP USE 8/29/2025

WARRANT REQUEST

ALLEGATION #1: Violation of General Condition: Failure to Report as Directed.

SUBSTITUTION #1: On 11/4/2024 Mr. Washington reported as directed and I provided him with a verbal and written directive via Action Plan to report in my office for his next appointment on 11/25/2024. I also sent him a copy of the action plan with a reminder of his reporting instructions on 11/7/2024.

On 11/25/2024 Mr. Washington failed to report. I attempted to call him and the call rang but did not route me to a voicemail.

ALLEGATION #2: Violation of Special Condition: Intoxicating substance use.

SUBSTITUTION #2: On 11/4/2024 Mr. Washington provided a urinalysis (UA), as directed. On 11/6/2024 I received the results for the UA from the lab which stated the UA was positive for Amphetamine (≥2,500ng/mL) and Methamphetamine (≥2,500ng/mL).

ALLEGATION #3: Violation of Special Condition: Complete a substance evaluation as directed and abide by treatment recommendations.

SUBSTITUTION #3: On 11/4/2024 in office I provided Mr. Washington with a verbal and written directive via Action Plan to complete a substance use evaluation by 11/25/2024. I sent him a reminder of this directive via email on 11/7/2024. As of 11/25/2024 I have received no information or confirmation that Mr. Washington has scheduled or completed a substance use evaluation as directed.

RECOMMENDATION: It is respectfully recommended a warrant be issued for Mr. Washington's arrest. Upon apprehension, further recommendations will be made.

1 supported by oath or affirmation, and particularly describing the place to be searched and the person or
2 thing to be seized." Or Const Art I, § 9. The relevant issue here is whether the warrant was issued "upon
3 probable cause, supported by oath, or affirmation." *M.* when a defendant challenges the validity of a
4 warrant, the State must either present the warrant to prove its validity or show that the arrest was
5 justified by a warrant exception supported by probable cause. *State v. Peralda*, 315 Or App 252, 262-
6 63 (2021).

7 Oregon Revised Statute authorizes a supervisory authority, such as WCCC, to order the arrest
8 and detention of a person under PPS upon "reasonable grounds" to believe they violated supervision
9 conditions, following an investigation to ascertain the violations. ORS 144.350(1). The statute provides
10 that such orders constitute "full authority for arrest and detention of the violator." ORS 144.360.
11 Although Article I, Section 9 of the Oregon Constitution requires that warrants be supported by
12 "probable cause," Or Const Art I, § 9, in the context of PPS violations, the statute establishes a specific
13 statutory framework based on "reasonable grounds." ORS 144.350(1).

14 Oregon Supreme Court has acknowledged that following this statutory process leads to valid
15 administrative warrants for PPS violations. *See State v. Guley*, 324 Or 57, 65-66 (1996). In *Guley*, the
16 Oregon Supreme Court analyzed a probation condition that required a probationer to submit to a search
17 if a probation officer had "reasonable grounds" to believe it would disclose evidence of a violation.
18 *Id.* The court held that "reasonable grounds" is "a quantum of evidence, less than probable
19 cause," which produces a probation officer reasonably believes that "the probationer has violated a
20 condition of probation and that a search will produce evidence of that violation." *Id.* "If a probation
21 officer in possession of that quantum of information acts to make such a search, the ensuing search is
22 valid under the statute." *Id.* at 67. Although the court in *Guley* analyzed a search incident, Article I, § 9
23 of the Oregon Constitution applies to both arrest warrants and search warrants. *State v. Brown*, 96 Or

PAGE 4-RESPONSE TO DEFENDANT'S MOTION TO SUPPRESS SEARCH AND ARREST

Washington County District Attorney
150 North Holladay Street, Suite 100
Hillsboro, Oregon 97124-2002
(503) 664-6771 Fax: (503) 664-6772

7/22/2025 2:49 PM
25CN02140
WASHINGTON COUNTY SUPERVISORY AUTHORITY OF POST-PRISON SUPERVISION
WARRANT AUTHORIZATION AND SUSPENSION ORDER

NAME: WASHINGTON, BARRY TRENNEL ORDER OF SUPERVISION
S104: 14798711 COUNTY: WASH SUSPENSION AND DETENTION
DOB: 04/06/1984 < ORIGIN ONLY >
WHEREABOUTS UNKNOWN

OFFENSE OFFENSE OFFENSE OFFENSE
21CR25804/03 WEAP USE

WARRANT AUTHORIZATION AND SUSPENSION ORDER

TO: ANY SHERIFF, PEACE OFFICER, PAROLE OFFICER, OR CORRECTIONS OFFICER.

THE WASHINGTON COUNTY SUPERVISORY AUTHORITY OF POST-PRISON SUPERVISION HEREBY SUBSISTE THE SUPERVISION OF THE ABOVE NAMED PERSON WHO WAS RELEASED TO SUPERVISION ON 04/20/2023.

YOU ARE HEREBY AUTHORIZED AND DIRECTED TO TAKE CUSTODY AND HAVE THIS PERSON DETAINED UNTIL FURTHER ORDER BY THE SUPERVISORY AUTHORITY.

THIS IS A NO BAIL WARRANT. EFFECT DATE: 11/26/2024

Supervising Authority / Designee

ORS 144.350, 144.360

***NOTIFY PO MOLLY BIRNBAUM AT 503-846-3584

ONCE IN CUSTODY TO INITIATE HEARING**

Jude Sawyer
Deputy District Attorney
Attorney(s) for Plaintiff

WASHINGTON COUNTY
District Attorney's Office
Jude Sawyer (Deputy DA)
150 North Holladay Street
Hillsboro, Oregon 97124
(503) 664-6771

1 found in the search. *M.*
2
3 As in *Peralda*, the Defense expects that the State will be unable to produce the warrant
4 which directed officers to arrest Mr. Washington. The State will similarly be unable to show that
5 the warrant was supported by a sworn statement, oath, or affirmation. The document attached as
6 exhibit 1 is a digital copy of the warrant request that Officer McBride submitted to WCCC. The
7 warrant request does not contain a sworn statement constituting an "oath or affirmation" under
8 Article I, § 9. See ORS 133.140(6), (7) (describing the requirements of an affidavit or sworn
9 statement for search warrants); See also *State v. Brown*, 96 Or App 171, 175 (1989) (noting that
10 unsworn statements before the court were insufficient to support an arrest warrant). If the State is
11 unable to make a *prima facie* case proving the validity of the arrest warrant which formed the
12 basis of the residence in this case, or if the Court ultimately finds that the arrest warrant was
13 invalid, the search and its fruits should be suppressed.
14
15 **II. The arrest warrant issued by WCCC failed to meet statutory requirements because**
16 **it was not in writing.**
17
18 A warrant or arrest must be in writing. ORS 133.140 (establishing the required contents
19 and form of arrest warrants). The issue of whether a probation violation warrant must be in
20 writing as required by ORS § 133.140(1) was addressed in *State v. Meier*, 145 Or App 179, 181
21 (1996). In *Meier*, an officer surveilled the defendant in his vehicle and suspected that he was
22 selling drugs, but he did not develop probable cause to arrest. *M.* at 181-2. The officer
23 approached the defendant who admitted that he possessed a knife and a baseball bat. *M.* The
24 officer then called the defendant's parole officer and told him about the bat, the knife, and his
25 suspicion of drug activity. *M.* A condition of the defendant's probation was that he consent to a
26 search upon reasonable grounds to believe that evidence of a parole violation would be found. *M.*

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Supervising Authority / Designee

ORS 144.350, 144.360

***NOTIFY PO MOLLY BIRNBAUM AT 503-846-3584

ONCE IN CUSTODY TO INITIATE HEARING**

Jude Sawyer
Deputy District Attorney
Attorney(s) for Plaintiff

WASHINGTON COUNTY
District Attorney's Office
Jude Sawyer (Deputy DA)
150 North Holladay Street
Hillsboro, Oregon 97124
(503) 664-6771

1 suspicion of drug activity. *M.* A condition of the defendant's probation was that he consent to a
2 search upon reasonable grounds to believe that evidence of a parole violation would be found. *M.*
3 The investigating officer told the defendant that he had reasonable grounds to believe that he was
4 violating his probation and requested a search, which the defendant refused. *M.* The parole
5 officer then verbally directed the investigating officer to arrest the defendant for a parole
6 violation. *M.*
7
8 The defendant in *Meier* moved to suppress, arguing that ORS 144.360 (applying all laws
9 applicable to warrants to probation, parole, and PPS violation arrest orders) and ORS 133.140(1)
10 (requiring that all warrants shall be in writing) jointly required the probation officer's arrest order
11 to be in writing. *Meier*, 145 Or App at 183. The Court held that the arrest order was not required to
12 be in writing and that therefore the arrest was lawful. *M.* at 185. The Court reasoned that,
13 when a police officer directly observes a person in the general public commit a crime, that
14 officer may arrest that person without a warrant, and by extension, a police officer acting on the
15 authority of a parole officer who possessed reasonable grounds to believe that the parolee
16 committed a parole violation in this presence also had the authority to make a warrantless arrest.
17
18 *M.* The Court declined, however, to decide whether a written order or warrant based on a
19 probation violation is required in other circumstances. *Meier*, 145 Or App at 185 n. 6.
20
21 Here, unlike in *Meier*, the alleged probation violation was unrelated to any other conduct that
22 the arresting officers observed on May 10, 2025. The *Meier* court analogized the officer's
23 warrantless arrest based on his contemporaneous observations of the defendant to a warrantless
24 arrest based on direct observations of a crime being committed. The more appropriate analogy to
25 the warrant and arrest in this case is to an arrest warrant issued by a judge based on an oath or
26 affirmation that the subject of the warrant has committed a crime. Such a warrant would be
27 required to be in writing under ORS 133.140(1). Because such a warrant would be required to be
28 in writing under that statute, the warrant authorizing Mr. Washington's arrest would have also
29 been in writing. If this Court does not find that a valid warrant was issued for Mr. Washington's
30 arrest was issued in writing, the Court should find that his arrest and the search effectuating that
31 arrest were unlawful.

PAGE 16--MOTION TO SUPPRESS SEARCH AND ARREST

METROPOLITAN PUBLIC DEFENDER
JULIE SAWYER, CLU, BAR, JUDICIAL OFFICER

7/22/2025 2:49 PM
25CN02140

Corrections Information Systems
Offender Warrant Request Report

Offender: 14798711 WASHINGTON, BARRY TRENNEL Location: WASH
DOB: 04/06/1984
Current Status: PostPrison/LC
Requester ID/Name: BIRNBAUM
Address: 17548 NW SPRINGVILLE RD #9
City: PORTLAND State: OR
Comm Risk: 600 HI High
Primary CaseLoad: 5249 MCBRIDE, MOLLY
Rtnry Date: 11/25/2024
Docket #: County: Offr Oth Para Descript Max Date
21CR25804/03 WASH 1 166220 WEAP USE 8/29/2025

WARRANT REQUEST

ALLEGATION #1: Violation of General Condition: Failure to Report as Directed.

SUBSTITUTION #1: On 11/4/2024 Mr. Washington reported as directed and I provided him with a verbal and written directive via Action Plan to report in my office for his next appointment on 11/25/2024. I also sent him a copy of the action plan with a reminder of his reporting instructions on 11/7/2024.

On 11/25/2024 Mr. Washington failed to report. I attempted to call him and the call rang but did not route me to a voicemail.

ALLEGATION #2: Violation of Special Condition: Intoxicating substance use.

SUBSTITUTION #2: On 11/4/2024 Mr. Washington provided a urinalysis (UA), as directed. On 11/6/2024 I received the results for the UA from the lab which stated the UA was positive for Amphetamine (≥2,500ng/mL) and Methamphetamine (≥2,500ng/mL).

ALLEGATION #3: Violation of Special Condition: Complete a substance evaluation as directed and abide by treatment recommendations.

SUBSTITUTION #3: On 11/4/2024 in office I provided Mr. Washington with a verbal and written directive via Action Plan to complete a substance use evaluation by 11/25/2024. I sent him a reminder of this directive via email on 11/7/2024. As of 11/25/2024 I have received no information or confirmation that Mr. Washington has scheduled or completed a substance use evaluation as directed.

RECOMMENDATION: It is respectfully recommended a warrant be issued for Mr. Washington's arrest. Upon apprehension, further recommendations will be made.

1 announced their presence as Sheriff's Office personnel and requested Defendant to come out. Deputies
2 found Defendant sitting in a dark closet while searching a bedroom and arrested him. Deputy King
3 verified the active arrest order under WCCO Records and told Defendant to the Washington County Jail.
4 Community Corrections (WCCC) arrest order for post-prison supervision (PPS) violations. Defendant
5 filed a motion to suppress the arrest and search, alleging violations of his rights under Article I, Section
6 9 of the Oregon Constitution. The State opposes this motion, asserting that the arrest and search were
7 lawfully conducted. The WCCC arrest warrant was validly issued under ORS 144.350, supported by
8 reasonable grounds and a signed supervisory authority order, and complied with the written warrant
9 requirements of ORS 133.140(1) and ORS 144.360. This Court should deny the motion to suppress, as
10 no constitutional or statutory violations occurred.

11 **STATEMENT OF FACT**

12 On May 10, 2025, at about 6:42 a.m., deputies from the Washington County Sheriff's Office
13 responded to a domestic disturbance at 17458 NW Springville Road, Apt 9, Portland, OR. Avery Penn
14 made the call, reporting an incident involving his daughter Ashle Penn and Defendant Barry
15 Washington. Dispatch notified the deputies of an active WCCC arrest order for Defendant's PPS
16 violations. The arrest order was entered into the Law Enforcement Data System (LEDS) on November
17 26, 2024, with citations for carrying a concealed weapon and possession of a firearm based on
18 Defendant's prior assaults and unlawful use of a weapon.

19 Deputy King arrived and knocked on the apartment door. Ashle Penn answered and confirmed
20 that Defendant was inside. Deputy King notified Ms. Penn about the arrest order and asked Defendant to
21 come out. Ms. Penn declined to answer questions and stated she would retrieve Defendant. After several
22 minutes without a response from Defendant, Deputy King knocked again. Ms. Penn said she was trying
23 to speed him up. After a delay of about 10 minutes, the deputies entered the residence. Deputies

PAGE 2-RESPONSE TO DEFENDANT'S MOTION TO SUPPRESS SEARCH AND ARREST

Washington County District Attorney
150 North Holladay Street, Suite 100
Hillsboro, Oregon 97124-2002
(503) 664-6771 Fax: (503) 664-6772

7/22/2025 2:49 PM
25CN02140
WASHINGTON COUNTY SUPERVISORY AUTHORITY OF POST-PRISON SUPERVISION
WARRANT AUTHORIZATION AND SUSPENSION ORDER

NAME: WASHINGTON, BARRY TRENNEL ORDER OF SUPERVISION
S104: 14798711 COUNTY: WASH SUSPENSION AND DETENTION
DOB: 04/06/1984 < ORIGIN ONLY >
WHEREABOUTS UNKNOWN

OFFENSE OFFENSE OFFENSE OFFENSE
21CR25804/03 WASH 1 166220 WEAP USE 8/29/2025

WARRANT AUTHORIZATION AND SUSPENSION ORDER

TO: ANY SHERIFF, PEACE OFFICER, PAROLE OFFICER, OR CORRECTIONS OFFICER.

THE WASHINGTON COUNTY SUPERVISORY AUTHORITY OF POST-PRISON SUPERVISION HEREBY SUBSISTE THE SUPERVISION OF THE ABOVE NAMED PERSON WHO WAS RELEASED TO SUPERVISION ON 04/20/2023.

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ORS 144.350, 144.360

***NOTIFY PO MOLLY BIRNBAUM AT 503-846-3584

ONCE IN CUSTODY TO INITIATE HEARING**

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Deputy District Attorney
Attorney(s) for Plaintiff

WASHINGTON COUNTY
District Attorney's Office
Jude Sawyer (Deputy DA)
150 North Holladay Street
Hillsboro, Oregon 97124
(503) 664-6771

1 affirmation that the subject of the warrant has committed a crime. Such a warrant would be
2 required to be in writing under ORS 133.140(1). Because such a warrant would be required to be
3 in writing under that statute, the warrant authorizing Mr. Washington's arrest would have also
4 been in writing. If this Court does not find that a valid warrant was issued for Mr. Washington's
5 arrest was issued in writing, the Court should find that his arrest and the search effectuating that
6 arrest were unlawful.

CONCLUSION

7 The Defense expects that the State will be unable to produce a valid warrant
8 constitutionally and statutorily sufficient to support Mr. Washington's search and arrest on May
9 10, 2025. If the State is unable to produce said warrant, the Court should suppress all derivative
10 evidence of the search and arrest.

DATED this July 3, 2025.

Julie Sawyer
Julie Sawyer, CLU, BAR, JUDICIAL OFFICER

7/22/2025 2:49 PM
25CN02140
WASHINGTON COUNTY SUPERVISORY AUTHORITY OF POST-PRISON SUPERVISION
WARRANT AUTHORIZATION AND SUSPENSION ORDER

NAME: WASHINGTON, BARRY TRENNEL ORDER OF SUPERVISION
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Jude Sawyer
Deputy District Attorney
Attorney(s) for Plaintiff

WASHINGTON COUNTY
District Attorney's Office
Jude Sawyer (Deputy DA)
150 North Holladay Street
Hillsboro, Oregon 97124
(503) 664-6771

7/22/2025 2:49 PM
25CN02140
WASHINGTON COUNTY SUPERVISORY AUTHORITY OF POST-PRISON SUPERVISION
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NAME: WASHINGTON, BARRY TRENNEL ORDER OF SUPERVISION
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21CR25804/03 WASH 1 166220 WEAP USE 8/29/2025

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TO: ANY SHERIFF, PEACE OFFICER, PAROLE OFFICER, OR CORRECTIONS OFFICER.

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YOU ARE HEREBY AUTHORIZED AND DIRECTED TO TAKE CUSTODY AND HAVE

1
2
3 IN THE CIRCUIT COURT OF THE STATE OF OREGON
4 FOR THE COUNTY OF WASHINGTON
5
6 STATE OF OREGON,)
7) No. 25CN02140
8 Plaintiff,)
9) MOTION TO RECONSIDER
10)
11 vs.)
12) WITHDRAWAL OF COUNSEL
13)
14 BARRY WASHINGTON,)
15)
16 Defendant.) **HEARING REQUESTED**
17)
18
19 COMES NOW the Defendant, Barry Washington, by and through his attorney, Jake
20 Bragger, and moves this Court to reconsider its order denying a previous Defense motion
21 to withdraw counsel from any further representation of Mr. Washington and appointing new counsel
22 for the reasons set forth in the attached declaration.
23
24 Pursuant to UTCR 4.050, Defendant requests oral argument, official court reporting
25 services, and estimates the time necessary for this hearing will not exceed thirty minutes. This
26 Motion is based upon the attached declaration, and, is in the opinion of counsel, required by the
27 Oregon Rules of Professional Conduct and not made nor filed for the purpose of delay.
28
29 DATED this July 31, 2025.
30
31 /s/ Jake Bragger
32 Jake Bragger, OSJI # 244423
33 Attorney for Defendant
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POINTS AND AUTHORITIES:
ORCP 1.16(a)
PAGE 1 - MOTION TO WITHDRAW

METROPOLITAN PUBLIC DEFENDER
400 EAST MAIN STREET, SUITE 210
LEWISBURG, OREGON 97121 PHONE: (503) 726-9678 FAX: (503) 726-0950

1
2 IN THE CIRCUIT COURT OF THE STATE OF OREGON
3 FOR THE COUNTY OF WASHINGTON
4
5 STATE OF OREGON,) No. 25CN01240
6 Plaintiff,)
7 vs.) ORDER RE- MOTION TO
8 BARRY WASHINGTON,) WITHDRAW
9 Defendant.)
10
11 THIS MATTER having come before the Court upon the motion of Jake Bragger to
12 withdraw as the attorney for the defendant;
13
14 IT IS HEREBY ORDERED that the motion to withdraw is:
15
16 _____ Granted _____ X_____ Denied
17
18
19
20
21
22
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24
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26

8/5/2025 1:07:14 PM


Circuit Court Judge, Kelly D Lammery

Submitted By:
Jake Bragger, OSB # 244423
Attorney for Defendant

PAGE 1 - MOTION TO WITHDRAW

MAIL THROUGH A PUBLIC DEFENDER
404 EAST MAIN STREET, SUITE 2100 PORTLAND, OREGON 97212 PHONE: (503) 746-7000 FAX: (503) 746-6900

1 Withdraw and grant this request for Counsel to withdraw from representing Mr.
2 Washington.
3
4 DATED this July 31, 2025.
5
6 /s/ Jake Brugger
7 Jake Brugger, OSB # 244423
8 Attorney for Defendant
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I hereby declare that the above statement is true to the best of my knowledge and belief, and that I understand it is made for use as evidence in court and is subject to penalty for perjury.



Jade Sawyer
Deputy District Attorney
Oregon State Bar #250555

Wardlaw & Condit, P.C. (Attorney)
100 North First Avenue, Suite 300, Medford
Medford, OR 97504-0001

Page 3 – DECLARATION IN SUPPORT OF MOTION FOR RESET

15. Defendant is entitled to a clear and accurate record that reflects the true nature of the cause of action.

IV. Relief Requested

16. Defendant respectfully requests that this Court:

- (a) Order the State to clarify on the record the precise cause of action being pursued in this matter;
- (b) Strike the "victim" designation from the service contacts and case record;
- (c) Correct the mislabeling of this case as "VRO" to reflect its true nature as a contempt proceeding; and
- (d) Direct that all future filings and proceedings reflect the correct characterization of this matter.

Dated this 29th day of September, 2025

Submitted by:
BARRY WASHINGTON
Defendant
PO Box 1572
Portland OR, 97207
barry.washington.bw@gmail.com